

**Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. on the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings will be accepted nor considered after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

September 18, 2026

#	Case Name	Tentative
1.	Cecilia and John V, LLC vs. Nguyen 24-01431827	Motion to Be Relieved as Counsel of Record The motion of attorney Shawn M. Olson of Olson Law Firm to withdraw as attorney of record for Defendant Kim-Hiem Thi Nguyen is GRANTED, effective upon the moving attorney filing a Proposed Order within 3 days of the hearing and serving the client with the signed order. (Code Civ. Proc. § 284, CRC 3.1362.) THIS RULING IS FINAL Moving Attorney to give notice.

2.	Noria vs. Mason Reconstruction LLC 25-01498751	Motion to Be Relieved as Counsel of Record The motion of attorneys Joshua White and Allen Ho of Laurel Employment Law to withdraw as attorney of record for Plaintiff Eduardo Noria is GRANTED effective upon filing proof of service of the signed order on the client. (Code Civ. Proc. § 284, CRC 3.1362.) THIS RULING IS FINAL Moving attorney is to give notice.
3.	Salinas vs. Bazoft Automotive 23-01352644	Motion to Be Relieved as Counsel of Record x 3 Attorneys Anthony Chavos and Lauri Lau of Chavos & Rau APLC's Motion to be Relieved as Counsel of Record for Defendants Nissan Extended Service Corporation, Inc., Sentry Select Insurance Company, and Bazoft Automotive, LLC vba South Coast Mitsubishi is GRANTED. Service on the client Defendants and counsel of the other Parties was proper and all required forms were filed pursuant to California Rules of Court, Rule 3.1362. The order will take effect once moving attorney files proof of service of this Order on Defendants Defendants Nissan Extended Service Corporation, Inc., Sentry Select Insurance Company, and Bazoft Automotive, LLC vba South Coast Mitsubishi. The Court now sets an Order to Show Cause re: Status of Representation for Defendants Nissan Extended Service Corporation, Inc., Sentry Select Insurance Company, and Bazoft Automotive, LLC vba South Coast Mitsubishi for January 21, 2027, at 9:30 a.m. in Department C12. As these Defendants are corporations, they must be represented by counsel to participate in these proceedings. THIS RULING IS FINAL Moving attorneys to provide notice.
4.	EOS Optical INC. vs. Cler Vision, Inc. 24-01388738	Motion to Be Relieved as Counsel of Record x 5 Attorney Ronald S. Hodges, Esq.'s Motion to be Relieved as Counsel of Record for Defendants Cler Vision, Inc., Hamida Laboratory Inc.,

		Wei Chiao Lin, Nha T. Nelson, and Defendant/Cross-Complainant Natasha Hamida is GRANTED. Service on the client Defendants and counsel of the other Parties was proper, and all required forms were filed pursuant to California Rules of Court, Rule 3.1362. After the motions were filed, this Court scheduled a trial for 12/3/27. (See ROA 744.) Moving Attorney shall provide the client Defendants with notice of the trial date alongside notice of the order relieving him as counsel of record for the client Defendants. The order will take effect once moving attorney files proof of service of this Order on Defendants Cler Vision, Inc., Hamida Laboratory Inc., Wei Chiao Lin, Nha T. Nelson, and Defendant/Cross-Complainant Natasha Hamida The Court now sets an Order to Show Cause re: Status of Representation for Defendants Cler Vision, Inc. and Hamida Laboratory Inc. for January 21, 2027, at 9:30 a.m. in Department C12. As these Defendants are corporations, they must be represented by counsel to participate in these proceedings. THIS RULING IS FINAL Moving attorney to provide notice.
5.	McPhee vs. Hoag Hospital 25-01532238	Motion to Compel Arbitration The motion by defendant Lake Forest Post Acute, LLC dba Trabuco Hills Post Acute, erroneously sued as Trabuco Hills Post Acute and Lake Forest Post Acute, LLC dba Trabuco Hills Post Acute to compel arbitration is DENIED. (9 U.S.C.A. § 2; Code Civ. Proc., § 1282.2.) The court finds that the Arbitration Agreement [“Agreement”] relied on by moving party (Siga Decl., Ex. A) does not clearly and unmistakably delegate arbitrability determinations to the arbitrator, and that arbitrability is to be determined by the court. (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944 [“When deciding whether the parties agreed to arbitrate a certain matter (including arbitrability), courts generally ... should apply ordinary state-law principles that govern the formation of contracts ... Courts should not assume that the parties agreed to arbitrate arbitrability unless there is ‘clea[r] and unmistakabl[e]’ evidence that they did so;” internal citations omitted]; <i>Nelson v. Dual Diagnosis Treatment Center, Inc.</i> (2022) 77 Cal.App.5th 643, 654 [“<i>Nelson</i>”] [“Under California law, it

is presumed the judge will decide arbitrability, unless there is clear and unmistakable evidence the parties intended the arbitrator to decide arbitrability;” internal citations omitted]; see also *id.* at 656 [where an arbitration agreement provides judicial authority to sever provisions, such “broad judicial authority ... precludes any conclusion that the parties clearly and unmistakably delegated arbitrability questions to an arbitrator”]; *Ajamian v. CantorCO2e, L.P.* (2012) 203 Cal.App.4th 771, 792 [“Even broad arbitration clauses that expressly delegate the enforceability decision to arbitrators may not meet the clear and unmistakable test, where other language in the agreement creates an uncertainty in that regard”]; Sigar Decl., Ex. A, Article XI, § 11.1 [severability clause].)

Plaintiffs’ evidentiary objections to ¶ 8 of the Sigar Decl. are SUSTAINED (lacks foundation, lacks personal knowledge). Plaintiffs’ evidentiary objections to ¶ 9 of the Sigar Decl. are SUSTAINED as to the second sentence [“The executed Agreement was maintained in Barbara McPhee’s admission records in the ordinary course of the Facility’s business”] as lacking foundation and lacking personal knowledge. Plaintiffs’ remaining evidentiary objections are OVERRULED.

Moving party has failed to provide sufficient evidence demonstrating the existence of a valid arbitration agreement governing plaintiffs’ claims in this action. (*Knutson v. Sirius XM Radio Inc.* (9th Cir. 2014) 771 F.3d 559, 565 [threshold issue on a motion to compel arbitration under the Federal Arbitration Act [FAA] is whether an agreement to arbitrate the controversy exists]; *Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 51 [“*Garcia*”] [“Even when an agreement provides that it is governed by the FAA, courts must first apply state law principles in determining whether the parties entered into an agreement to arbitrate”]; *First Options of Chicago, Inc. v. Kaplan*, *supra* at 944 [state law principles apply to determining contract formation]; *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 [“*Iyere*”] [three-step process to authenticate arbitration agreement].)

The Sigar Decl. in support of the moving papers appears sufficient to meet moving party’s fairly minimal initial burden, “by attaching to its petition a copy of the arbitration agreement purporting to contain [Decedent’s] electronic signature.” (*Garcia, supra* at 51; Sigar Decl., Ex. A.) Plaintiffs have met their shifted burden of producing evidence challenging the authenticity of Decedent Barbara McPhee’s purported electronic signature (*Garcia, supra* at 51), inasmuch as documents produced by moving party in response to subpoena show that Decedent signed other admission documents by hand at the time of admission, as opposed to the purported electronic signature on the

subject Agreement several days later. (Shaver Decl., ¶¶ 3 and 4, Ex. 2 thereto [“Authorization/Consent for Advanced Wound Care Services” bearing handwritten signature], Ex. 3 thereto [“Consent for Treatment” bearing handwritten signature].) Those subpoenaed records also include an unsigned copy of the Agreement upon which moving party relies. (*Id.*, ¶ 5, Ex. 4.) The fact that Decedent physically signed other admission documents, but did not physically sign the subject Agreement, is sufficient to at least raise an inference that her physical signature is genuine, while the purported electronic signature is not. (See *Garcia, supra* at 46-47 [arbitration denied where other signed documents bore “indicia of trustworthiness” not present in the arbitration agreement].) There is no explanation why moving defendant required Decedent to physically sign documents on the date of admission, while purportedly requiring electronic signatures on the separate Agreement later; nor is there any evidence that moving party required Decedent’s electronic signature on any other document, or why the Agreement produced in response to subpoena is unsigned. (*Leger v. R.A.C. Rolling Hills L.P.* (2022) 84 Cal.App.5th 240, 247, fn. 6 [court may draw own inferences even from undisputed facts].)

Given the foregoing and given plaintiffs’ valid evidentiary objections to the Sigar Decl., to this Court, moving party has not met its ultimate burden of “proving, by a preponderance of the evidence, the authenticity of the signature.” (*Iyere, supra* at 755.) Sigar “summarily assert[s]” that the Agreement here “bears Barbara McPhee’s electronic signature,” which is insufficient. (*Ruiz v. Moss Bros. Auto Group* (2014) 232 Cal.App.4th 836, 843 [“*Ruiz*”]; Sigar Decl., ¶ 8; plaintiffs’ evidentiary objection no. 3, sustained as set forth above.) However, moving party presents no evidence to “explain how [Sigar] arrived at that conclusion or inferred [Decedent] was the person who electronically signed the ... agreement.” (*Ruiz, supra*.) The Sigar Decl. is insufficient to show that the electronic signature on the subject Agreement could only have been placed by Decedent. (*Fabian v. Renovate America, Inc.* (2019) 42 Cal.App.5th 1062, 1069-1070 [motion to compel arbitration denied where moving party failed to show “how the electronic signature could have only been placed on the Contract by Fabian”]; *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 547 [motion to compel arbitration denied due to lack of evidence that plaintiff employee was “the only person who could have accessed the onboarding portal and signed the agreement”]; *Ruiz, supra* at 843 [evidence of unique IDs and passwords, still insufficient absent evidence that only plaintiff had access].)

Plaintiffs shall give notice.

6.	Snell vs. Torres 25-01535541	1. Demurrer to Complaint(X3) 2. Motion to Strike(X3) 3. Case Management Conference OFF CALENDAR FAC Filed on September 4, 2026, as ROA 182 CMC is now scheduled for October 23, 2026.
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